

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2886

By: Chapman

AS INTRODUCED

An Act relating to railroads; defining terms; providing for type of identification required to be shown following a railroad accident or incident; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 104 of Title 66, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "FRA Certified Conductor" means a conductor, switchman, brakeman, trainman, or fireman licensed and certified by the Federal Railroad Administration (FRA);

2. "FRA Certified Engineer" means an engineer licensed and certified by the FRA;

3. "Railroad accident or incident" means accidents occurring to persons, including pedestrians, motor vehicles, and animals,

1 incidental to and as a consequence of the flow of vehicles and
2 pedestrians along the railroads of Oklahoma; and

3 4. "Railroad management" means any rail employee overseeing and
4 assisting in the operation of rail transit.

5 B. For identification purposes, no railroad employee involved
6 in a railroad accident or incident shall be required to show his or
7 her driver license to law enforcement or other safety officer.

8 Railroad employees shall be allowed to show the following
9 identification:

10 1. A FRA Certified Conductor shall provide his or her FRA
11 certification;

12 2. A FRA Certified Engineer shall provide his or her FRA
13 certification; and

14 3. Railroad management shall provide his or her FRA
15 certification.

16 SECTION 2. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

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21 60-1-11583 JBH 12/28/24
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